

HOUSE BILL 1162

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to public charter schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-2-140, is amended by adding the following as a new subsection:

(h) A public charter school, as defined in § 49-13-104, that is authorized by a county LEA may operate within the geographic boundaries of a municipal LEA pursuant to § 49-13-137. Subsections (c)-(g) do not apply to a public charter school that is authorized by a county LEA and that is operating within the geographic boundaries of a municipal LEA pursuant to § 49-13-137.

SECTION 2. Tennessee Code Annotated, Section 49-13-105(a), is amended by deleting the third sentence of the subsection and substituting instead the following:

Except as provided in § 49-13-137, a public charter school that is authorized by the commission must operate within the geographic boundaries of the local board of education that denied approval of the initial public charter school application.

SECTION 3. Tennessee Code Annotated, Section 49-13-113(c), is amended by adding the language "pursuant to its charter agreement, but not pursuant to § 49-13-137," after the language "is located" wherever it appears in the subsection.

SECTION 4. Tennessee Code Annotated, Section 49-13-113(b), is amended by deleting the subsection and substituting instead the following:

(b)

(1) A public charter school authorized by the commission is open to students residing within the geographic boundaries of the LEA in which the public charter school is authorized to locate in its charter agreement.

(2) A public charter school that operates, pursuant to § 49-13-137, outside the geographic boundaries of the LEA in which the public charter school is authorized to locate in its charter agreement is not open to students residing within the geographic boundaries of the LEA in which the public charter school is operating pursuant to § 49-13-137, unless the LEA in which the public charter school is authorized to locate in its charter agreement has a policy allowing out-of-district enrollment.

SECTION 5. Tennessee Code Annotated, Section 49-13-113(d)(4)(E), is amended by deleting "of the LEA in which the public charter school is located" and substituting instead "of the LEA in which the public charter school is authorized to locate in its charter agreement".

SECTION 6. Tennessee Code Annotated, Section 49-13-113(e), is amended by designating the existing language as subdivision (1) and adding the following as a new subdivision:

(2) Subdivision (e)(1) does not allow a public charter school authorized by the ASD to enroll additional students residing within the geographic boundaries of an LEA in which the public charter school is operating pursuant to § 49-13-137.

SECTION 7. Tennessee Code Annotated, Section 49-13-136(c), is amended by adding the following as a new subdivision:

(7) An LEA in which one (1) or more public charter schools operate, but only pursuant to § 49-13-137, is not required to comply with the requirements of this subsection (c). This subsection (c) only applies to an LEA in which one (1) or more

public charter schools operate pursuant to a charter agreement that authorizes the public charter school to locate within the geographic boundaries of that LEA.

SECTION 8. Tennessee Code Annotated, Title 49, Chapter 13, is amended by adding the following as a new section:

49-13-137. Limited operation outside the geographic boundaries of the LEA.

A public charter school may operate outside the geographic boundaries of the LEA in which the public charter school is authorized to locate in its charter agreement, if:

- (1) The public charter school needs additional space, facilities, or buildings to serve the students of the public charter school; and
- (2) The public charter school enters into a written agreement for the lease of buildings or facilities, or portions thereof, that are located in the same county as the LEA in which the public charter school is authorized to locate in its charter agreement; provided, that the buildings or facilities, or portions thereof, leased by the public charter school are used for educational purposes.

SECTION 9. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.